

most common for young people, who tend to stay up late, sleep too little and drive at night.

- **Shift Workers** – Drivers who have non-traditional work schedules have a greater risk of being involved in a fatigue-related traffic crash.
- **People With Undiagnosed Sleep Disorders** – The presence of a sleep disorder increases the risk of crashes. If you find you are regularly tired in the daytime or experience any of these symptoms on a regular basis, you may have a sleep disorder and should seek medical help.

Effective Countermeasures

Prevention – Before you embark on a trip, you should:

- Get enough sleep.
- Plan to drive long trips with a companion.
- Schedule regular stops for every 100 miles or two hours.
- Avoid alcohol and medications (over-the-counter and prescribed) that may impair performance. Check with your doctor or pharmacist about any medication you are taking. Alcohol interacts with fatigue, increasing its effects.
- You are not at your best if you are ill or very tired. Do not drive for at least 15 minutes after waking from sleep.

Actions for the Drowsy Driver

If you suspect that you are drowsy when driving, you must:

- Recognize that you are close to sleep and cannot calculate when sleep may occur.
- Not depend on the radio, open window or other “tricks” to keep you awake.
- Find a safe place to stop for a break in response to symptoms of fatigue.

- Pull off into a safe area away from traffic and take a brief nap (15 to 45 minutes).
- Drink coffee or another source of caffeine to promote short-term alertness if needed. (It takes about 30 minutes for caffeine to enter the bloodstream.)

NOTE: See Chapter 9 for more information about the dangers of driving under the influence of alcohol and other drugs.

USING A CELLULAR OR MOBILE TELEPHONE

A driver can become distracted from safe driving by use of a mobile telephone (like a cellular telephone). In New York State, it is a traffic infraction to speak into or listen to a hand-held mobile telephone while driving. For a first offense, you could be required to pay a fine up to \$200 and receive five license points. The phone may be hand-held to activate, begin, or end a call. Exemptions are provided for calls for emergency situations, for police and other law enforcement officers and for fire department personnel and operators of authorized emergency vehicles in the performance of official duties. In New York State, a hands-free mobile telephone allows the user to communicate without the use of either hand. A driver can use a hands-free telephone at any time.

Penalties for texting, electronic device use

In New York State, it is illegal to use portable electronic devices, such as cell phones and smart phones, to send or receive text messages or e-mails while driving. The penalty for a first offense is a fine of up to \$200. A second offense (both committed within 18 months) is a fine up to \$250. A third or subsequent offense (all committed within 18 months) is a fine up to \$450. Also, drivers with probationary and junior licenses who use a hand-held phone or text while driving will receive a 120-day suspension for a first conviction and a revocation of at least one year for subsequent convictions within six months of the time a license is restored after suspension.